Alabama Rules of Appellate Procedure

Rule 34.

Oral argument.

(a) *In general.* Oral argument will be allowed when it is determined by the court, or the panel to which the case is assigned, from examination of the briefs and record that oral argument is desirable. Oral argument will not be allowed if the court, or the panel to which the case is assigned, unanimously agrees that:

(1) The appeal is frivolous; or

(2) The dispositive issue or set of issues has been recently authoritatively decided; or

(3) The facts and legal arguments are adequately presented in the briefs and record and the decisional process would not be significantly aided by oral argument.

Any party to an appeal who desires oral argument shall place the words "ORAL ARGUMENT REQUESTED" conspicuously on the front cover of that party's brief. Any party so requesting oral argument shall file a short statement in that party's brief as required by Rule 28(a)(1) indicating why oral argument should be heard.

(b) *Time allowed for argument.* Each side shall be allowed 30 minutes for argument, unless otherwise ordered by the court. A party is not obliged to use all of the time allowed, and the court may terminate the argument whenever in its judgment further argument is unnecessary.

(c) *Order and content of argument.* The appellant is entitled to open and conclude the argument. The opening argument shall include a fair statement of the case. Counsel will not be permitted to read at length from briefs, records or authorities.

(d) *Nonappearance of parties.* If the appellee fails to appear to present argument, the court may hear argument on behalf of the appellant, if present. If the appellant fails to appear, the court may hear argument on behalf of the appellee. If neither party appears, the case will be decided on the briefs unless the court shall otherwise order. If the party or the party’s attorney who requested the oral argument fails to appear to present argument, the court may assess a penalty against that party in the amount of the reasonable cost for appearance incurred by the party or the attorney for the party who does appear for argument. In its

discretion, the court may include a reasonable attorney's fee as a part of such costs.

(e) *Use of Visual Aids, Documents, or Physical Exhibits at Argument.*

(1) *Notice to Opposing Counsel*. If counsel intends to use at oral argument visual aids, documents, or physical exhibits, notice shall be given to opposing counsel two days before the date of the oral argument. If the visual aid, document, or exhibit is included in the record on appeal, the citation to the volume and page of the record where it can be found shall be contained in the notice. Counsel shall include with the notice a facsimile of the visual aid or document and a photograph of the physical exhibit if the exhibit was not used at the trial preceding the appeal.

(2) *Placement and Removal from Courtroom.* Counsel shall arrange with the appellate-court clerk to have the visual aids, documents, or physical exhibits placed in the courtroom before the court convenes on the date of the argument in sufficient time for opposing counsel to inspect them. After the argument, counsel shall immediately give the visual aids, documents, or exhibits to the clerk unless the court otherwise directs. If the visual aids, documents, or exhibits are not reclaimed by counsel within 14 days after the appellate opinion is sent to the parties by the clerk, they shall be destroyed or otherwise disposed of as the clerk shall think best. Visual aids, documents, or physical exhibits used at trial but not made part of the record shall be sent back to the trial court after an opinion has been rendered, along with any other exhibits or documents that are required to be returned.

(f) *Counsel Who May Present Argument and Sit at Counsel Tables*. Counsel may present argument on behalf of a party only if the counsel is listed on the party's brief or files a notice of appearance with the court. Without leave of court, only counsel who are permitted to present argument may sit at the counsel tables.

[Amended 3-5-81, eff. 10-2-81; amended 11-19-96, eff. 1-1-97; Amended 1-122005, eff. 6-1-2005, adopted 1-12-2023, eff. 2-2-2023; amended 7-2-2025, eff. 10-1-2025.]

Committee Comments

Rule 34 does not work a substantial change from former Alabama practice on oral argument. It does, however, provide for application by a party for additional time if 30 minutes is felt to be inadequate. Such a grant is by the court, although the rule provides that such an extension is to be liberally granted if cause is shown.

Subdivision (d) provides that a party who appears for oral argument may be heard even if his opponent does not appear. The rule further provides sanctions for failure of a party to appear when he has been the one requesting oral argument.

Court Comment to Amendments to Rules 34(a) and 34(d)
Effective January 1, 1997

The amendments to Rules 34(a) and 34(d) remove gender specific pronouns.

Committee Comments to Amendment to Rule 34(a)
Effective June 1, 2005

Subdivision (a) has been amended to conform with Rule 28(a)(1). Further, because parties do not have a right to oral argument, subdivision (a) has been amended to reflect that oral argument is discretionary with the Court.

Committee Comment to Amendment to Rule 34(e)
Effective October 1, 2025

The amendment to Rule 34(e) requires a party to give two days' advance notice of any visual aids, documents, and physical exhibits that the party intends to use at oral argument, along with a copy of the visual aids, documents, and physical exhibits. In addition, the party must give the opposing party an opportunity to inspect any such visual aid, document, or exhibit on the day of oral argument, before the argument commences. The intent of the amendment is to ensure that there is no dispute regarding the accuracy or veracity of the visual aid, document, or exhibit and that, if there is, the opposing party has an opportunity during oral argument to advise the court of his or her objection or rebuttal. The amendment also makes a minor revision to the existing rule regarding the custody of the visual aids, documents, or physical exhibits by the clerk, imposing a 14-day period for counsel to reclaim any visual aids, documents, or physical exhibits, unless they are returned to the trial court.

Note from the reporter of decisions: The order amending Rule 21(a), Rule 28, Rule 31(b), Rule 32(a) and (b), Rule 34(a), Rule 39, and Rule 40(g), effective June 1, 2005, and adopting Rule 25A, effective June 1, 2005, is published in that volume of *Alabama Reporter* that contains Alabama cases from 890 So. 2d.

Note from the reporter of decisions: The order adopting Rule 34(f), Alabama Rules of Appellate Procedure, effective February 2, 2023, is published in that volume of *Alabama Reporter* that contains Alabama cases from __ So. 3d.

Note from the reporter of decisions: The order amending Rule 4(b)(1), Rule 21(a)(1), Rule 34(e), and Rule 39(g), Alabama Rules of Appellate Procedure, and adopting the Committee Comments to the amendments of Rule 4(b)(1), Rule 34(e), and Rule 39(g), effective October 1, 2025, is published in that volume of *Alabama Reporter* that contains Alabama cases from __ So. 3d.